

LEASE AGREEMENT

This Lease Agreement (this "Agreement") is made on **[Date of Agreement]** by and between:

Landlord: **CVP Properties 4.0 LLC**

Tenant(s): **[Tenant Name(s)]**

In the event there is more than one Tenant, each reference to "Tenant" shall apply to each of them, jointly and severally. Each Tenant is jointly and severally liable to Landlord for payment of rent and performance in accordance with all other terms of this Agreement. Each Landlord and Tenant may be referred to individually as a "Party" and collectively as the "Parties."

1. PREMISES

The premises leased is a **[Unit / Floor]** with:

(a) 3 bedroom(s)

(b) 2 bathroom(s)

located at **[Property Address]** (the "Premises").

2. AGREEMENT TO LEASE

Landlord agrees to lease to Tenant and Tenant agrees to lease from Landlord, according to the terms and conditions set forth herein, the Premises.

3. TERM

This Agreement shall be considered as a: **1 (one) Year** Lease. This Agreement will be for a term beginning on **[Date]** (the "Term"). At the end of the Term, the Tenant must vacate the Premises. Unless this Agreement has been extended by mutual written agreement of the Parties, there will be no holding over past the Term under the terms of this Agreement under any circumstances. If it becomes necessary to commence legal action to remove Tenant from the Premises, the prevailing Party will be entitled to attorney's fees and costs in addition to damages.

4. HOLDOVER

If Tenant remains in possession of the Premises after the expiration or termination of the Term without Landlord's written consent, Tenant shall pay Landlord use and occupancy for each day of the holdover at a daily rate equal to **150%** of the daily rent, calculated by dividing the monthly rent by thirty (30). Tenant shall also be liable for all damages resulting from the holdover, including any lost rent or expense caused by Landlord's inability to deliver possession to a new tenant, together with reasonable attorney's fees and costs. To the extent permitted by law, Landlord's acceptance of any payment after the Term is accepted as use and occupancy only and does not renew this Agreement, create a new tenancy, or waive Landlord's right to recover possession.

5. RENT

Tenant will pay Landlord a monthly rent of **[\$[Monthly Rent]]**. Rent will be payable in advance and due on the **1st** day of each month during the Term. The security deposit is payable to Landlord when Tenant signs this Agreement. Rent will be paid to Landlord by mail or in person by personal check or electronic transfer, and will be payable in U.S. Dollars.

Proration: Rent for any period during the Term which is for less than one month will be a pro rata portion of the monthly installment.

Bounced Checks: Tenant agrees to pay \$45.00 for each dishonored bank check.

6. GUARANTY

A guarantor is NOT required for the Tenant.

7. LATE FEE

If rent is not received in full within 5 days after its due date, Tenant shall pay a late fee of **\$15.00** for each day thereafter until the rent is paid, not to exceed \$ **[Late Fee Maximum]** in total for any late payment. In no event shall late fees exceed the maximum permitted by New York law, which is currently the lesser of fifty dollars (\$50) or five percent (5%) of the monthly rent.

8. UTILITIES & MAINTENANCE

Tenant and Landlord are responsible for payment of all utility and other services for the Premises as follows:

Paid by Landlord: Gas, Water, Sewage, Heat, Garbage, Snow Removal & Lawn Care.

Paid by Tenant: Electric (fixed \$50.00/month), Cable, Internet.

9. SECURITY DEPOSIT

Upon signing this Agreement, Tenant will pay a security deposit in the amount of \$ **[Security Deposit]** to Landlord. The security deposit will be retained by Landlord as security for Tenant's performance of its obligations under this Agreement. The security deposit may not be used or deducted by Tenant as the last month's rent of the Term. Tenant will be entitled to a full refund of the security deposit if Tenant returns possession of the Premises to Landlord in the same condition as accepted, ordinary wear and tear excepted. Within the timeframe required by applicable law after the termination of this Agreement, Landlord will return the security deposit to Tenant (minus any amount applied by Landlord in accordance with this section). Landlord may apply the security deposit to unpaid rent, late fees, and utilities; to the cost of repairing damage beyond ordinary wear and tear; to cleaning the Premises; and to the removal and disposal of property abandoned by Tenant. Landlord will provide Tenant with a written itemized statement of any amount retained, within the time required by law. The security deposit is not a limit on Tenant's liability, and Tenant remains responsible for any amount owed to Landlord in excess of the deposit. Landlord will hold the security deposit as required by New York law and will provide Tenant with the name and address of the institution holding it.

10. MOVE-IN AND MOVE-OUT INSPECTIONS

Move-In. Within seven (7) days after the Term begins, Tenant shall inspect the Premises, note in writing any existing damage or defect on the move-in condition report provided by Landlord, and return the signed report to Landlord. Any condition not noted in a timely written report is presumed to have been in good condition at move-in. Landlord may photograph or record the condition of the Premises at move-in for its records.

Move-Out. Tenant may request an inspection of the Premises before move-out, as provided by New York law. Landlord will notify Tenant in writing of that right and will offer an inspection date, and Tenant may be present. An inspection does not release Tenant from liability for damage beyond ordinary wear and tear, including damage not identified at the inspection.

11. USE OF PREMISES

The Premises will be occupied only by the Tenant(s) named in this Agreement and any other occupants permitted by law, and used only for residential purposes. Tenant will not engage in any objectionable conduct, including behavior which will make the Premises less fit to live in,

will cause dangerous, hazardous or unsanitary conditions or will interfere with the rights of others to enjoy their property. Tenant will be liable for any damage occurring to the Premises and any damage to or loss of the contents thereof which is done by Tenant or Tenant's guests or invitees.

12. QUIET HOURS; GUESTS

(a) **Quiet Hours.** Between **10:00 p.m. and 8:00 a.m.** each day, Tenant, all occupants, and their guests shall keep noise, music, and activity at a level that does not disturb neighbors or other occupants of the building. At all other times, Tenant shall not make or permit noise or activity that unreasonably disturbs others. Repeated disturbances after written notice are a breach of this Agreement.

(b) **Guests.** Tenant may have guests, and is responsible for their conduct and for any damage they cause. No guest may stay in the Premises for more than **14** consecutive days without Landlord's prior written consent. A person who stays longer without consent is not a permitted occupant.

(c) **Occupants.** Only the Tenant(s) named in this Agreement, and other occupants permitted by New York law, may live in the Premises. Within thirty (30) days after Landlord's written request, Tenant shall give Landlord the names of all persons occupying the Premises. Tenant is responsible for ensuring that all occupants and guests comply with this Agreement.

13. CONDITION OF THE PREMISES

Tenant has examined the Premises, including the appliances and fixtures (and furnishings), and acknowledges that they are in good condition and repair, normal wear and tear excepted, and accepts them in its current condition.

14. MAINTENANCE AND REPAIRS

Tenant will maintain the Premises, including all appliances and fixtures (and furnishings), in clean, sanitary and good condition and repair. Tenant will not remove Landlord's appliances and fixtures (and furnishings) from the Premises for any purpose. If repairs other than general maintenance are required, Tenant will notify Landlord for such repairs. In the event of default by Tenant, Tenant will reimburse Landlord for the cost of any repairs or replacement.

15. NOTICE OF HAZARDS; WINTER CARE

Tenant shall promptly notify Landlord in writing of any leak, water intrusion, mold, pest activity, heating, plumbing or electrical failure, or other condition that may cause damage to the Premises or endanger health or safety. To the extent permitted by law, Tenant shall be responsible for damage that results from Tenant's failure to give prompt notice or from Tenant's negligence. During cold weather, Tenant shall keep the Premises heated to at least fifty-five (55) degrees Fahrenheit at all times, including when Tenant is away, to prevent frozen pipes. Tenant shall not disable, remove, or tamper with any smoke detector, carbon monoxide detector, or other fire safety equipment, shall replace batteries as needed, and shall promptly report any malfunction to Landlord.

16. COMPLIANCE

Tenant agrees to comply with all applicable laws, ordinances, requirements and regulations of any federal, state, county, municipal or other authority.

17. MECHANICS' LIEN

Tenant understands and agrees that Tenant and anyone acting on Tenant's behalf does not have the right to file for mechanic's liens or any other kind of liens on the Premises. Tenant agrees to give actual advance notice to any contractors, subcontractors or suppliers of goods,

labor or services that such liens are invalid. Tenant further agrees to take the additional steps necessary to keep the Premises free of any and all liens that may result from construction completed by or for Tenant.

18. ALTERATIONS

Tenant will not make any alteration, addition or improvement to the Premises without first obtaining Landlord's written consent. Any and all alterations, additions or improvements to the Premises are without payment to Tenant and will become Landlord's property immediately on completion and remain on the Premises, unless Landlord requests or permits removal, in which case Tenant will return that part of the Premises to the same condition as existed prior to the alteration, addition or improvement. Tenant will not change any existing locks or install any additional locks on the Premises without first obtaining Landlord's written consent and without providing Landlord a copy of all keys.

19. SMOKING/VAPING

Smoking of any kind is strictly prohibited on any part of the Premises. This prohibition applies to Tenant and any visitor, guest or other occupant on the Premises.

20. PETS

Tenant is NOT allowed to have or keep any pets, even temporarily, on any part of the Premises.

21. FIRE AND CASUALTY

If the Premises are damaged by fire or other serious disaster or accident and the Premises becomes uninhabitable as a result, (a) Tenant may immediately vacate the Premises and terminate this Agreement upon notice to Landlord or (b) Landlord may terminate this Agreement upon notice to Tenant. Tenant will be responsible for any unpaid rent or will receive any prepaid rent up to the day of such fire, disaster or accident. If the Premises are only partially damaged and inhabitable, Landlord may make full repairs and will do so within a prompt and reasonable amount of time. At the discretion of Landlord, the rent may be reduced while the repairs are being made.

22. LIABILITY

Landlord is not responsible or liable for any loss, claim, damage or expense as a result of any accident, injury or damage to any person or property occurring anywhere on the Premises, unless resulting from the negligence or willful misconduct of Landlord.

23. INDEMNIFICATION

To the fullest extent permitted by law, Tenant shall indemnify, defend, and hold harmless Landlord and its members, managers, employees, and agents from and against any claim, loss, liability, damage, or expense, including reasonable attorney's fees, arising from (a) Tenant's breach of this Agreement or (b) the acts or omissions of Tenant or Tenant's family members, guests, invitees, or pets, except to the extent caused by the negligence or willful misconduct of Landlord.

24. RENTER'S INSURANCE

Tenant is required to obtain, and maintain at all times during the Term, a renter's insurance policy. Tenant will name Landlord as an interested party or additional insured. Tenant will provide Landlord with a certificate or proof of insurance upon request.

25. ASSIGNMENT AND SUBLETTING

Tenant will NOT assign this Agreement as to any portion or all of the Premises or make or

permit any total or partial sublease or other transfer of any portion or all of the Premises.

26. RIGHT OF ENTRY

Landlord may enter the Premises at reasonable times with timely notice to inspect the Premises, to make any alterations, improvements or repairs or to show the Premises to a prospective tenant, buyer or lender. In the event of an emergency, Landlord may enter the Premises at any time.

27. SURRENDER

Tenant will deliver and surrender to Landlord possession of the Premises immediately upon the expiration of the Term or the termination of this Agreement, clean and in as good condition and repair as the Premises was at the commencement of the Term, reasonable wear and tear excepted.

28. DEFAULT AND REMEDIES

(a) **Events of Default.** Each of the following is a default by Tenant: (i) failure to pay rent or any other sum when due; (ii) failure to perform any other obligation under this Agreement that is not cured within ten (10) days after written notice from Landlord, or such shorter period as the law permits where the breach cannot be cured or endangers persons or property; and (iii) use of the Premises for any unlawful purpose.

(b) **Remedies.** Upon a default, and after giving any notice required by law, Landlord may, to the extent permitted by law, terminate this Agreement or Tenant's right to possession, commence a proceeding to recover possession of the Premises, and recover all unpaid rent, late fees, and other sums owed, together with damages, the cost of repair and cleaning, and reasonable attorney's fees and costs.

(c) **Reletting.** If Landlord recovers possession before the end of the Term, Tenant remains liable for rent for the balance of the Term, less amounts Landlord actually receives from reletting after using the efforts to relet the Premises that the law requires.

(d) **No Waiver; Remedies Cumulative.** To the extent permitted by law, Landlord's acceptance of a partial or late payment, or delay or failure to exercise any right, is not a waiver of that or any other right or default. Landlord's remedies are cumulative.

(e) **Notice Periods.** Nothing in this section shortens any notice or cure period required by law.

29. SUBORDINATION

This Agreement and Tenant's right under it shall be subject and subordinate to the lien, operation and effect of each existing or future mortgage, deed of trust, ground lease and/or any other similar instrument of encumbrance covering any or all of the Premises, if any, and each renewal, modification, consolidation, replacement or extension thereof.

30. NOTICES

All notices under this Agreement must be in writing. Notices to Tenant may be delivered by hand, sent by first-class or certified mail addressed to Tenant at the Premises, or sent by email to any email address Tenant has provided to Landlord in writing. Notices to Landlord must be delivered by hand or sent by first-class or certified mail to **[Landlord Notice Address]**, or to any other address Landlord designates in writing. A notice sent by mail is considered given three (3) days after mailing, and a notice delivered by hand or email is considered given on delivery, except where the law prescribes a different rule for a particular notice.

31. DISPUTES

(a) **Mediation and Arbitration of Monetary Claims.** Any claim for money arising out of this Agreement, including claims concerning security deposit deductions, repair or damage

charges, unpaid utilities, and late fees, shall first be submitted to mediation. If the claim is not resolved through mediation, it shall be finally resolved by binding arbitration administered by the American Arbitration Association under its applicable rules. Only the monetary claims described in this subsection are subject to mediation and arbitration. No other dispute under this Agreement, including any matter concerning possession of the Premises, is subject to this subsection.

(b) **Attorney's Fees and Costs.** In any proceeding arising out of this Agreement, the prevailing Party shall be entitled to recover its reasonable attorney's fees and costs from the non-prevailing Party. This provision applies equally to Landlord and Tenant.

(c) **Governing Law; Waivers.** This Agreement shall be governed by and construed in accordance with the laws of the State of New York. To the fullest extent permitted by law, each Party knowingly and voluntarily waives any right to a trial by jury and to participate in a class action in connection with any dispute arising out of this Agreement.

32. AMENDMENTS

This Agreement may be amended or modified only by a written agreement signed by the Parties.

33. SEVERABILITY; COUNTERPARTS

If any provision of this Agreement is found to be invalid or unenforceable, that provision shall be enforced to the maximum extent permitted by law, or modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall continue in full force and effect. Time is of the essence with respect to Tenant's payment obligations. This Agreement may be signed in counterparts and by electronic signature, each of which is an original and all of which together are one instrument.

34. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the Parties and supersedes and cancels all prior agreements of the Parties, whether written or oral, with respect to the subject matter.

IN WITNESS WHEREOF, the Parties hereto, individually or by their duly authorized representatives, have executed this Agreement as of the Effective Date.

Landlord — CVP Properties 4.0 LLC

Tenant Signature

By: Valentian Paulsen

Printed Name: [Tenant Name(s)]

Date

Date

Guarantor (complete only if a guarantor is required under Section 6)

Guarantor Signature

Guarantor Full Name

Date